Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Nebraska are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining but not the mineral-leasing laws, and reserved for use in connection with the Gavins Point Dam and Reservoir Project, under the supervision of the Department of the Army as authorized by the Flood Control Act of December 22, 1944 (58 Stat. 887).

SIXTH PRINCIPAL MERIDIAN

T. 33 N., R. 4 W.,
Sec. 2, lot 1;
Sec. 3, lots 5, 6, 7, and 8;
Sec. 10, lots 1, 2, 3, 4, SW¼SE¼, and E½NE¼;
Sec. 11, lot 4.
T. 33 N., R. 5 W.,
Sec. 21, lot 1;
Sec. 28, lot 1.

The areas described aggregate 626.60 acres.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

APRIL 24, 1956.

[F. R. Doc. 56-3303; Filed, Apr. 27, 1956; 8:46 a. m.]

[Public Land Order 1292]

[232409]

UTAH

PARTIAL REVOCATION OF EXECUTIVE ORDER OF APRIL 29, 1912, CREATING PUBLIC WATER RESERVE NO. 5, UTAH NO. 3

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The Executive order of April 29, 1912, creating Public Water Reserve No. 5, Utah No. 3, is hereby revoked so far as it affects the following-described lands:

SALT LAKE MERIDIAN

T. 7 N., R. 5 W.,
Sec. 9, lots 4 and 5;
Sec. 15, lots 1, 2, and 3;
Sec. 27, lots 1, 2, 3, 4, and 5.
T. 9 N., R. 6 W.,
Sec. 3, SE¼SW¼ and SW¼SE¼;
Sec. 7, N½S½;
Sec. 9, S½NW¼ and N½SW¼.
T. 11 N., R. 7 W.,
Sec. 26, E½SW¼ and SE¼.
T. 14 N., R. 11 W.,
Sec. 31.
T. 13 N., R. 14 W.,
Sec. 7, SE¼SE¼;
Sec. 8, S½S½.
T. 12 N., R. 15 W.,
Sec. 8, S½NE¼ and N½SE¼;
Sec. 17, SW¼SW¼;
Sec. 18, S½SE¼;
Sec. 19, NE¼.

The areas described aggregate 2,186.72 acres, of which 159.01 acres are included in patented mining claims.

The following-described lands have also been patented:

SALT LAKE MERIDIAN

T. 7 N., R. 5 W.,
Sec. 9, lots 4 and 5;
Sec. 15, lots 1, 2, and 3;
Sec. 27, lots 1, 2, 3, 4, and 5.
T. 9 N., R. 6 W.,
Sec. 3, SE¼SW¼ and SW¼SE¼;
Sec. 7, N½S½;
Sec. 9, S½NW¼ and N½SW¼.
T. 11 N., R. 7 W.,
Sec. 26, E½SW¼ and W½SE¼.
T. 14 N., R. 11 W.,
Sec. 31.
T. 12 N., R. 15 W.,
Sec. 17, SW¼SW¼;
Sec. 19, NE¼.

The areas described aggregate 1,666.72 acres.

The following-described lands are vacant public domain:

SALT LAKE MERIDIAN

T. 11 N., R. 7 W.,
Sec. 26, E½SE¼.
T. 13 N., R. 14 W.,
Sec. 7, lot 6;
Sec. 8, lots 10 and 11.
T. 12 N., R. 15 W.,
Sec. 8, S½NE¼ and N½SE¼;
Sec. 18, S½SE¼.

The areas described aggregate 360.99 acres.

The public lands described in this order are grazing lands located on the northeast and northwest borders of Great Salt Lake in Box Elder County, Utah.

No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

Subject to any valid existing rights and the requirements of applicable law, the restored lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284, as amended), presented prior to 10:00 a. m. on May 30, 1956, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on August 29, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on August 29, 1956, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on August 29, 1956.

Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Salt Lake City, Utah.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

APRIL 24, 1956.

[F. R. Doc. 56-3304; Filed, Apr. 27, 1956; 8:47 a. m.]